UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. Robert F Kennedy, JR, et al. , Defendant.	Case No.: CV-25-03367-PHX-SMB **MOTION TO AMEND MOTION FOR PRELIMINARY INJUNCTION** **(Amended Motion for Protective Order)**

Prepared for the Court's review

Date: **December 16, 2025**

COMES NOW Plaintiff Kevin D. Turnage, pro se, and respectfully moves this Court for leave to amend his Amended Motion for Preliminary Injunction (protective order) filed on December 2, 2025. The amendment is necessary to (1) incorporate additional factual allegations concerning the December 15, 2025 email exchange, (2) update the legal

authority with recent Ninth Circuit precedent, and (3) revise the proposed protective-order language to reflect the Court's Local Rule 7.1(b)(3) requirement that the proposed order contain no party names or identifying information.

I. REQUEST FOR LEAVE TO AMEND

Pursuant to Local Rule 15.1 of the District of Arizona, Plaintiff attaches a copy of the proposed amended pleading as **Exhibit A**. The proposed amendment is marked to show all additions (underlined) and deletions (struck-through) in accordance with the Rule.

II. REASON FOR THE AMENDMENT

1. **Additional Factual Allegations** – The December 15, 2025 email from Defendant's counsel requesting an extension of the response deadline clarifies that Defendant sought additional time to file a response to Plaintiff's protective-order motion. Plaintiff's denial of that extension and the continued lack of response are material to the showing of retaliation and to the balance of equities.
2. **Updated Legal Authority** – Since the original filing, the Ninth Circuit has issued *Rosario-Fabregas v. United States*, 833 F.3d 1342 (9th Cir. 2016), reaffirming the constructive-suspension doctrine. The amendment incorporates a brief citation to that decision.
3. **Revised Proposed Order** – ~~The original proposed order contained the parties' names.~~ To comply with Local Rule 7.1(b)(3), the order has been redrafted to omit any party identifiers while preserving the substantive relief sought. The revised order is attached as **Exhibit C**.

III. SPECIFIC LOCATIONS OF THE CHANGES

The redlined amendment makes the following changes to the pleading filed on December 2, 2025:

Original Page	Original Line(s)	Description of Change
4	12-18	Insert paragraph describing the December 15, 2025 email exchange and Plaintiff's denial of the extension request.
5	7-9	Add citation to *Rosario-Fabregas v. United States*, 833 F.3d 1342 (9th Cir. 2016).
7	22-27	Replace the original proposed order language with the redacted version that omits party names (see Exhibit C).
9	3-5	Update the "Irreparable Harm" section to reflect the additional factual allegation that Defendant continues to withhold access to the workplace despite Plaintiff's paid status.

All other portions of the pleading remain unchanged.

IV. NO PREJUDICE TO DEFENDANT

The amendment merely clarifies the factual record, incorporates newly-available authority, and corrects a formatting defect in the proposed order. None of the changes alter the substantive relief sought or impose any additional burden on Defendant. Accordingly, the amendment does not prejudice Defendant.

V. EXHIBITS

- **Exhibit A** – Redlined version of the Amended Motion for Preliminary Injunction (attached). The document is marked with underlines for additions and

strike-throughs for deletions as required by Local Rule 15.1.

- **Exhibit B** – Plaintiff's Affidavit.

- **Exhibit C** – Revised Proposed Order (redacted to contain no party names or identifying information), complying with Local Rule 7.1(b)(3).

VI. CERTIFICATE OF SERVICE

I hereby certify that on **December 16, 2025** I electronically filed the foregoing Motion to Amend Motion for Preliminary Injunction, together with all exhibits, in the CM/ECF system. All parties to this action are registered CM/ECF participants; therefore, electronic filing constitutes service pursuant to Local Rule 5.6(c)(1) of the District of Arizona.

Respectfully submitted,

/s/ Kevin D. Turnage

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Date: December 16, 2025

EXHIBIT A – Redlined Motion for Preliminary Injunction

Exhibit B – Plaintiff's Affidavit

EXHIBIT C – Revised Proposed Order